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ON APRIL 25, the day before the trial was to resume, Issy Maisels called us together to discuss the grave effect the State of Emergency was having on the conduct of the trial. Because of the Emergency Regulations, consultations between the accused and our lawyers had become virtually impossible. Our lawyers, who were based in Johannesburg, had trouble seeing us in prison and were unable to prepare our case. They would often drive up and be informed that we were not available. Even when we were able to see them, consultations were harassed and cut short. More important, Maisels explained that under the Emergency Regulations, those already in detention would be exposing themselves to further detention merely by testifying, for they would inevitably make statements regarded as "subversive," thereby subjecting themselves to greater penalties. Defense witnesses who were not imprisoned now risked detainment if they testified.

The defense team proposed that they withdraw from the case in protest. Maisels explained the serious implications of such a withdrawal and the consequences of our conducting our own defense in a capital case. Under the hostile atmosphere at the time, he said, the judges might see fit to give us longer terms of imprisonment. We discussed the proposal among ourselves, and each of the twenty-nine accused — we were now minus Wilton Mkwayi — was able to express his opinion. The resolution was unanimously endorsed, and it was agreed that Duma Nokwe and I would help in preparing the case in the absence of our lawyers. I was in favor of this dramatic gesture, for it highlighted the iniquities of the State of Emergency.

On April 26, Duma Nokwe, the first African advocate in the Transvaal, rose in court and made the sensational announcement that the accused were instructing defense counsel to withdraw from the case. Maisels then said simply, "We have no further mandate and we will consequently not trouble Your Lordships any further," after which the defense team silently filed out of the synagogue. This shocked the three-judge panel, who warned us in direst terms about the dangers of conducting our own defense. But we were